



Notification Waiver Determination

SHAPE Australia – Australian Professional Shopfitters

Acquisition	SHAPE Australia Corporation Limited (SHAPE) applied for a notification waiver in respect of its proposed acquisition of 100% of the issued share capital in Australian Professional Shopfitters Pty. Ltd (APS), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	22 June 2026

Parties to the Acquisition	The acquirer, SHAPE, is an Australian publicly listed company (ASX: SHA). SHAPE provides a diverse range of construction services and products, including facilities maintenance, fitouts, and new builds, to customers in the office, transport, hotel, health, education, retail including retail fuel, government, aged care, community, data centres, defence, entertainment and recreation, industrial, and transport sectors in Australia. The target, APS, provides commercial fitout services and products, including shopfitting, manufacturing, project management and transport services, to customers in the retail sector in Australia. APS also has a warehouse in Melbourne supplying custom joinery for fitouts, almost all of which is supplied in-house for its own fitout projects.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is a small horizontal overlap between SHAPE Australia and APS in the supply of commercial fitout services in the retail sector, and the increase in SHAPE's share of supply of commercial fitout services to non-residential customers is estimated to be small b. there are alternative suppliers supplying commercial fitout services and joinery to customers, including for the retail sector, at both national and local level

	c. there is a low risk of foreclosure or other concerning vertical or conglomerate effects resulting from exclusionary conduct, bundling or tying of services post-acquisition. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act